

**Art. 16 Right to rectification (71.9%), Consent (94.9%), Data Controller (98.5%), Legal Basis (72.1%), Non-Personal Data (70.6%), Organisational Measure (77.3%), Personal Data (70.1%), Required Purpose (97.2%), Retention (70.3%), Technical Measure (85.7%):**

Close main menu Open main menu Topics Channels Activity & Movement Curriculum & Learning Holidays & Routines Page GoNoodle Privacy Policy Last updated: January 17, 2023 GoNoodle Privacy Policy Last updated: January 17, 2023 This privacy policy (Privacy Policy) is about how GoNoodle, Inc.

**Authority (71.2%), Data Controller (97.1%), Data Subject (88.0%), Legal Basis (91.1%), Processing (99.7%), Required Purpose (79.6%):**

(GoNoodle, we, us, or our) will collect and use any information given to us by users of GoNoodle.com (the Site), the GoNoodle mobile phone applications (the Apps) or other online services offered by GoNoodle (collectively, together with the Site and the Apps, the Services).

**Data Subject (87.0%):**

Users may access our Services without registering for an account, as described in our Terms of Service.

**Data Subject (93.9%), Organisational Measure (84.3%), Personal Data (97.4%), Required Purpose (76.2%), Retention (71.8%):**

For all users, whether they are account holders, users of profiles created under a given account, or non-account holders, we may collect the following information: IP Address; Device ID and other unique identifiers (including when the Services are accessed through Apple TV); Software and operating system information; URL of the site users came from; Browser version; Pages users visit and the details of user interactions with such pages; Whether a user self-selects as an Educator or not; Search terms within our Services; and Other clickstream data.

**Data Controller (92.7%), Processing (96.8%), Technical Measure (99.3%), Third Party (97.3%):**

We may collect this information ourselves or use a third party to collect and process the information on our behalf, including via the use of cookies, web beacons and other technologies (see HOW DOES GONOODLE USE COOKIES? section for more details).

**Personal Data (99.6%), Processing (80.5%), Third Party (99.4%):**

A list of third parties who collect, use, or store our users personal information can be found on our Third Party List.

**Personal Data (99.7%), Processing (99.2%), Required Purpose (91.7%):**

When a Grown-Up registers to create an account (a Family Account), we collect the following information from the Grown-Up: Birth year (collected only for age verification purposes and

discarded when registration is complete); Email address; IP Address; and Password.

**Personal Data (99.6%):**

Accordingly, we do not knowingly collect Personal Data from or about students through Educator Accounts.

**Consent (92.2%), Legal Basis (80.4%), Processing (99.1%):**

GoNoodle never collects Personal Data from children absent direct parental consent, as is required under the Childrens Online Privacy Protection Act (COPPA).

**Organisational Measure (76.9%):**

We place account registration for all child-directed properties behind an age-gate, to prevent children from inadvertently registering.

**Consent (82.1%), Processing (83.9%):**

Beyond what is disclosed above, GoNoodle would only collect Personal Data from a child under the age of thirteen (13) after notifying the childs Grown-Up and obtaining direct consent in advance.

**Art. 16 Right to rectification (76.3%), Processing (92.9%), Required Purpose (97.2%):**

Parents may review their childs Personal Data or request that their childs Personal Data be deleted, corrected, or no longer collected or used by contacting us at [privacy@gonoodle.com](mailto:privacy@gonoodle.com).

**Consent (83.7%):**

However, regardless of whether or not a user is registered for an account and irrespective of the type of account for which the user is registered, by accessing and/or using the Services, users accept and agree to be bound by this Privacy Policy, our Terms of Service, and the End User License Agreement, which are incorporated by reference here.

**Personal Data (92.7%), Required Purpose (99.2%):**

For Grown-Ups registering for Family Accounts, we use the Grown-Ups email address to send account verification emails and to send updates about how the Services are being used.

**Personal Data (95.7%):**

Once the Grown-Up clicks the link in the account verification email, the account is created and a zip or other postal code is assigned to the account based on the IP address.

**Processing (96.7%):**

In the event that we learn that we have accidentally collected such Personal Data without the requisite and verifiable parental consent, we delete that information from our database as quickly as practical.

**Personal Data (98.2%), Processing (84.5%):**

Once registered for a Family Account, we may collect and retain contact information and other

Personal Data from the Grown-Up in a number of ways, such as when the Grown-Up requests email updates or other information, completes customer surveys, or submits a feedback or contact form.

**Personal Data (98.9%), Processing (94.1%):**

When a user contacts us by phone, email, or postal mail, we may also receive and process that users Personal Data.

**Non-Personal Data (97.8%), Required Purpose (98.2%):**

In addition to the Personal Data we collect, we create aggregated, de-identified data and use it to improve our Services, to demonstrate the efficacy of our Services, and to develop new services.

**Processing (97.3%), Recipient (82.4%):**

We share aggregated, de-identified information with our sponsors to let them know how many users viewed and interacted with their materials but this information does not identify any individual.

**Required Purpose (99.0%):**

In some cases, these third parties need access to Personal Data, and so we may share Personal Data to the extent necessary in order for them to be able to perform those services for us.

**Processing (88.4%):**

We maintain and regularly update an active Third Party List of service providers who have access to our users Personal Data.

**Required Purpose (99.7%):**

For Educator Account holders, we use the information we collect to create the account, associate the account with the correct school, and better understand the geographic distribution of our user base, as examples.

**Personal Data (99.5%), Required Purpose (99.3%), Retention (73.4%):**

We collect date of birth to verify eligibility for the Services, however we discard it once registration is complete.

**Processing (95.5%), Required Purpose (71.3%):**

We engage third-party service providers that help us administer and provide the Services (for example, a web hosting company whose services we use to host our application).

**Personal Data (72.0%):**

GoNoodle does not share Educators names or sell Educators Personal Data.

**Legal Basis (99.3%):**

If we want to share Personal Data in a way that is materially different than we have described in this Privacy Policy, we will notify the user in advance and obtain consent in accordance with applicable law.

**Processing (82.2%):**

GoNoodle also uses cookies to enhance users Site visits.

**Processing (78.6%):**

A cookie is information either temporarily or permanently stored in a file on users computer.

**Data Subject (87.5%), Recipient (77.4%), Third Party (95.6%):**

If you are a child (under 13 years old) and need help understanding this Privacy Policy, you should ask a grown-up to read it and explain it to you.

**Third Party (97.2%):**

When anyone uses the Internet, unaffiliated parties such as ad networks, web analytics companies, and social networking platforms may collect information about users online activities over time and across our and other websites.

**Required Purpose (99.2%):**

This information may be used to provide advertisements for products and services that may interest GoNoodle users, and those companies may use cookies, clear GIFs, and other tracking technologies.

**Technical Measure (92.6%):**

Notwithstanding the foregoing, GoNoodle does not utilize third party trackers on portions of the Services commonly accessed by children.

**Consent (95.3%):**

We do send emails to Grown-Ups or Educators with information about our Services that we believe may be of interest when these users have opted in to receive those messages.

**Consent (84.0%):**

Grown-Ups and Educators may also choose to subscribe to email newsletter communications from GoNoodle.

**Consent (73.6%), Required Purpose (91.0%):**

We use the information provided to respond to their concern.

**Organisational Measure (70.9%):**

We continue our mission to follow Web Content Accessibility Guidelines (WCAG) and use Accessible Rich Internet Applications (ARIA) specification to help support people with disabilities.

**Organisational Measure (87.0%):**

SECURITY We are committed to protecting the security, integrity, and confidentiality of all user data through the use of commercially-reasonable physical, technical and administrative safeguards.

**Processing (94.6%):**

GoNoodle stores data in secure cloud-based environments and uses server authentication and industry-standard firewalls in an effort to prevent interference or access from outside intruders.

**Personal Data (99.0%):**

We also require unique account identifiers, user names, and passwords that must be entered each time users access the Services.

**Processing (98.4%):**

Nonetheless, despite GoNoodles security efforts described above, it is common knowledge that transmission of information via the Internet is not wholly secure, and we cannot guarantee the security of Personal Data transmitted to or through any of our Services.

**Personal Data (92.5%), Required Purpose (91.7%):**

It is your responsibility to safeguard any passwords, ID numbers, or other special access features associated with your use of the Services.

**Personal Data (92.6%):**

You are responsible for maintaining the confidentiality of your user name and password, as well as the credentials of any other users operating under your account.

**Retention (91.6%):**

DATA RETENTION AND PRIVACY REQUESTS We retain data for as long as an account is active, and for a period of time afterward to retain account continuity for Educators and Grown-Ups.

**Personal Data (99.6%), Right (87.0%):**

If you would like to access, review, update, rectify, and delete any Personal Information we hold about you, or exercise any other data subject right available to you under the EU General Data Protection Regulation (GDPR), CCPA, CPRA, or other applicable law, send your request to [privacy@gonoodle.com](mailto:privacy@gonoodle.com).

**Organisational Measure (88.4%):**

Our privacy team will examine your request and respond to you as quickly as possible.

**Organisational Measure (83.2%):**

We will honor valid deletion requests for deleting the account and the associated Personal Data within thirty (30) days.

**Contract (91.3%), Processing (96.2%):**

In these situations, the data processing and protection practices are explained in this Privacy Policy, the Terms of Service, as well as with, where applicable, a contractual agreement with the educational institution with which the Educator users are affiliated.

**Consent (92.5%):**

If you are a user accessing our Services from within the EEA (such user herein referred to as a Data Subject), we may ask for your consent so that we may process your Personal Data.

**Consent (85.2%), Legal Basis (97.4%):**

However, in certain situations, applicable data protection law allows us to process your Personal Data without needing to obtain your consent.

**Required Purpose (82.3%):**

For example: To perform our contractual obligations to you, including fulfilling requests you have made, contacting you in relation to any issues with your use of the Services, or where we need to provide your Personal Data to our service providers who help us operate the Services.

**Legal Basis (88.7%), Required Purpose (79.2%):**

To comply with laws, regulators, court orders, or other legal obligations.

**Legitimate Interest (78.8%), Required Purpose (77.7%), Right (94.9%):**

To fulfill our legitimate interests, including to communicate with you regarding the Services including about changes to the Services, to respond to your questions about your use of the Services, to support our investigation of suspected illegal activity, to protect and defend our rights and property, or the rights or safety of others, to develop, provide, and improve our Services and to enforce our Terms of Service, End User License Agreement, and this Privacy Policy.

**Automated Decision Making (81.5%), Personal Data (88.2%), Required Purpose (97.6%):**

We also use automated data collection tools to correlate your IP address with your location, sufficient to recognize your zip or postal code in order to display local sponsor or underwriter information or notify you of local events.

**Required Purpose (98.3%):**

We will use your Personal Data as described above and for other purposes, including the following:  
To fulfill or meet the reason you provided the information.

**Required Purpose (88.8%):**

For example, if you share your name and contact information to ask a question about our services, we will use that Personal Data to respond to your inquiry.

**Recipient (85.1%):**

We use the zip code to display content from local underwriters and sponsors.

**Required Purpose (89.4%):**

To provide, support, personalize, and develop our Services, including without limitation, receiving, processing, and responding to feedback.

**Required Purpose (83.3%):**

To our third party service providers to allow them to provide features on our behalf as described below.

**Required Purpose (94.1%):**

To create, maintain, customize, and secure your account with us.

**Required Purpose (89.1%):**

To personalize your experience with the Services and to deliver content, and service offerings relevant to your interests and/or geographic location, including targeted offers and ads through our Services, third-party sites, and via email or text message (with your consent, in accordance with applicable law).

**Consent (77.4%), Right (90.3%):**

For more information about third-party advertisers and how to prevent them from using your information, visit the NAIs consumer website at <http://www.networkadvertising.org/choices> or <http://www.aboutads.info/choices/>.

**Required Purpose (97.5%):**

For testing, research, analysis, and product development, including to develop and improve our Services and products through focus groups and surveys.

**Required Purpose (87.6%):**

To communicate information to you (e.g., new features, products, or services), and to send you relevant emails and communications that may be of interest to you and that you have opted in to receive.

**Required Purpose (96.2%):**

To help maintain the safety, security, and integrity of our Services, databases, and other technology assets, and business, including without limitation, to investigate suspected violations of our Terms of Service, suspected fraud, or other unlawful activity.

**Required Purpose (94.9%):**

To enforce our agreements, terms, conditions, and policies, and to notify you of any updates to the same.

**Legal Basis (78.1%):**

As may be required by law or by a court order, in which case we shall attempt to notify you and work with you to seek to limit the scope of the required disclosure.

**Processing (94.7%), Required Purpose (73.1%):**

To evaluate or conduct a merger, divestiture, restructuring, reorganization, dissolution, or other sale or transfer of some or all of our assets, whether as an ongoing concern or as part of bankruptcy,

liquidation, or similar proceeding, wherein Personal Data held by us about our users is among the assets transferred, in which case your information will remain subject to the terms of this Privacy Policy.

**Consent (71.7%):**

Within twenty-four (24) months of inactivity on any account, we will delete the account and the associated Personal Data.

**Legal Basis (93.7%):**

With your consent and as permissible under applicable laws and regulations.

**Data Subject (89.8%):**

EU RESIDENTS: YOUR DATA RIGHTS When we are operating as a Controller as described above, Data Subjects are provided with certain rights related to your Personal Data.

**Right (78.1%):**

In those circumstances, please contact your controller to exercise your rights.

**Legal Basis (99.4%):**

In all cases, we will act in accordance with applicable laws.

**Personal Data (82.9%), Processing (93.6%):**

You may obtain confirmation about whether Personal Data concerning you is processed, and request access to the Personal Data, including the purposes of the processing, the categories of Personal Data concerned, a copy of the Personal Data, and the recipients or categories of recipients to whom the Personal Data have been or will be disclosed.

**Personal Data (74.3%):**

If a Grown-Up does not complete registration within seven (7) days of the verification email, GoNoodle deletes the Personal Data associated with the account set up from its records.

**Art. 16 Right to rectification (91.5%):**

Right to rectification.

**Art. 16 Right to rectification (80.3%):**

You may have inaccurate Personal Data concerning you corrected.

**Art. 17 Right to erasure (right to be forgotten) (87.3%):**

Right to erasure ("right to be forgotten").

**Art. 18 Right to restriction of processing (95.9%):**

Right to restriction of processing.

**Art. 20 Right to data portability (74.5%):**

Right to data portability.

**Art. 21 Right to object (90.5%):**

Right to object.

**Art. 21 Right to object (73.6%):**

If Personal Data concerning you is processed for direct marketing purposes, you also have the right to object at any time to the processing of that Personal Data for that marketing, including profiling to the extent that it is related to the direct marketing.

**Legal Basis (97.1%), Scale EU (76.3%), Scale Non-EU (97.8%):**

INTERNATIONAL DATA TRANSFERS If you are located outside of the United States, please be aware that your information will be transferred to, processed, and stored in the United States, where it will be treated in accordance with this Privacy Policy and applicable privacy laws in the United States and the EU.

**Contract (86.0%):**

Where required, we implement Standard Contractual Clauses with our third parties pursuant to the requirements of the EU General Data Protection Regulation (GDPR), and you may request a copy of the Standard Contractual Clauses by emailing us at [privacy@gonoodle.com](mailto:privacy@gonoodle.com).

**Legal Basis (97.6%):**

CALIFORNIA AND CCPA PRIVACY RIGHTS AND DISCLOSURES This California Privacy Policy (Privacy Notice) provides the information required under the California Consumer Privacy Act of 2018 (CCPA) and applies to GoNoodles activities relating to California Consumers Personal Data.

**Personal Data (96.1%), Scale Non-EU (77.5%), Third Party (86.7%):**

California Civil Code Section 1798.83 permits users of the Site and the Apps who are California residents to request and obtain from us a list of what Personal Data (if any) we disclosed to third parties for direct marketing purposes in the preceding calendar year and the names and addresses of those third parties.

**Required Purpose (82.2%):**

Under certain circumstances, you may object, on grounds relating to your particular situation, or at any time where Personal Data is processed for direct marketing purposes to the processing of your Personal Data by us, and we can be required to no longer process your Personal Data.

**Data Protection Officer (85.6%):**

DATA PROTECTION OFFICER Our appointed Data Protection Officer is Ashley Swartz.

**Legal Basis (86.9%):**

If we make any material changes to this Privacy Policy, we will notify and obtain prior consent of the account holder using the email address provided during registration or otherwise as required by law.